

When a party fails to respond to a request for admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Here, Plaintiff's moving papers sufficiently demonstrate that the discovery was served by mail and email and Defendant has failed to respond within the required time frame.

Defendants' Opposition concedes that responses were not timely served. Defendants represent that they intend to serve verified responses to the RFAs that are in substantial compliance with CCP 2033.330 before the hearing on this motion. There is no evidence before the Court that they have done so.

Monetary sanctions are mandatory per CCP 2033.280(c). Plaintiff did not request sanctions and did not provide evidence to support the Court's determination of a reasonable amount. Therefore, no sanctions will be imposed.

Plaintiffs' Motion to Deem Requests for Admission, Set One Admitted by Defendants is **GRANTED**. A proposed order has been lodged and will be executed.

CAPITAL ONE, N.A. VS. WHITMIRE VAZQUEZ

CASE NUMBER: 23CVG-01238

Tentative Ruling on Order to Show Cause Re Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on June 3, 2026, to all parties and counsel for failure to appear on April 27, 2026. After the failure to appear, but before this OSC issued, Defense counsel filed a proof of service of their Order Granting Attorney's Motion to be Relieved as Counsel. Additionally, Plaintiff has filed a satisfactory Declaration in response to the OSC. Therefore, the OSC is VACATED as to all parties and counsel. Sanctions will not be imposed. This matter is ready to be reset for trial. Defendant is now proceeding in pro per. This matter is set for review regarding trial setting on **Monday, August 24, 2026 at 9:00 a.m. in Department 64**. Plaintiff is ordered to give Defendant notice and to file a proof of service of that notice. No appearances are necessary on today's calendar.

DURBIN, SR, ET AL. VS. MOHAMMADI, ET AL.

CASE NUMBER: 25CV-0208902

Tentative Ruling on Motion to Use Settled Statement: Plaintiff/Appellant William Durbin, Sr. moves for an order permitting the use of a settled statement pursuant to California Rules of Court Rule 8.137. Defendant opposes the Motion.

There is no dispute between the parties that a settled statement should be used in this matter. No reporter's transcript is available because the oral proceedings in the superior court were not reported by a court reporter. The dispute on this Motion concerns only the contents of the settled statement. Defendants object to the Proposed Settled Statement filed by Plaintiff concurrently with this Motion on the grounds that it is deficient, incomplete and inaccurate. Defendants have not submitted any proposed amendments or alternative proposed settled statement.

California Rules of Court Rule 8.137 sets forth the procedure for certifying a settled statement. CRC 8.137(c)(2) provides: “Appellants who are not represented by an attorney are encouraged to file their proposed statement on *Proposed Statement on Appeal (Unlimited Civil Case)* (form APP-014). The court may order an appellant to use form APP-014.”

The Court **ORDERS** Appellant to file and serve a Proposed Settled Statement on Appeal using Judicial Council Form APP-014 no later than 10 days after today’s hearing. Respondent will then have 20 days to serve and file proposed amendments pursuant to CRC 8.137(e). No later than 10 days after Respondent files proposed amendments or the time to do so expires, whichever is earlier, a party may request a hearing to review and correct the proposed statement pursuant to CRC 8.137(f). The Court will then follow the procedures set forth in CRC 8.137 as required.

The Motion is **GRANTED** in part, in that the Court orders the use of a Settled Statement. The Motion is **DENIED** with respect to the Proposed Settled Statement filed concurrently with the Motion. The parties are ordered to proceed as detailed above. This matter is set for review regarding status of the Settled Statement on **Monday, August 24, 2026, at 9:00 a.m. in Department 64.**

IN RE: FURTADO

CASE NUMBER: 26CV-0210015

Tentative Ruling on Petition for Change of Name: Petitioner Michelle Furtado seeks to change the name of her minor son. Proof of publication is on file. However, when a petition to change the name of a minor is brought by one parent only, the nonconsenting parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). In the alternative to personal service, the Court may order notice be given in another manner the Court determines is reasonably calculated to give actual notice to the non-consenting parent. CCP § 1277(a)(4). No proof of service is on file.

Petitioner has filed a Declaration detailing her efforts to locate and serve the father. The Court has considered the Declaration and finds that Petitioner has made reasonable efforts to locate and serve the father without success. The evidence establishes that the father is traveling extensively outside of the country with no known contact information or consistent residence address. Therefore, the Court finds that notice by publication is the best available method and is reasonably calculated to give actual notice to the non-consenting parent.

All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

GEROSIN, ET AL. VS. REDDING SENIOR LIVING LLC, ET AL.

CASE NUMBER: 25CV-0209491

Tentative Ruling on Motion to Continue Trial Date: Defendants Redding Senior Living, LLC, dba Hilltop Springs Senior Living; Mosaic Management, Inc. and Propero III Redding, LLC move for an order granting their motion to continue trial on the grounds that good cause exists pursuant to California Rules of Court Rule 3.1332(c) and (d). Plaintiffs Thomas Gerosin, Linda Mariano, Brenda Probst, and Michael Gerosin as individuals and as successors-in-interest to Betty Gerosin oppose the Motion.